# ZIMA Solutions Limited

Digital Transformation • Financial Technology • System Integration
Makongo, Near Ardhi University, Kinondoni, Dar es Salaam, Tanzania
Phone: +255 69 241 0353 • Email: info@zima.co.tz • Web: zima.co.tz


14 March 2026

The Procurement Manager / Tender Committee
**counsenuth**

**RE: Competitive Quotation – HYDRO-GEOPHYSICAL SURVEY & BOREHOLE DRILLING IN BAHI & KONDOA DISTRICT COUNCILS**

Dear Sir/Madam,

We are pleased to submit our application for the above-referenced tender. ZIMA Solutions Limited is a Tanzanian-registered ICT services and business innovation company (TIN: 181-314-605), specializing in digital transformation for financial institutions, government agencies, and enterprises across Tanzania.

We have carefully reviewed the tender requirements and understand that counsenuth is seeking: *Competitive quotation for hydro-geophysical survey and borehole drilling services in Bahi and Kondoa District Councils, Dodoma Region.*

We remain available for any clarifications, presentations, or additional documentation you may require and look forward to your favorable consideration.

Yours faithfully,

**Andrew Stanslaus Mashamba**
Director, ZIMA Solutions Limited
info@zima.co.tz | +255 69 241 0353

# 1. COMPANY PROFILE

| | |
|---|---|
| **Company Name** | ZIMA Solutions Limited |
| **Registration** | Companies Act, 2002 (No. 181314605) |
| **Date of Incorporation** | January 2025 |
| **TIN** | 181-314-605 |
| **Business License** | ICT Services (Local) — Kinondoni Municipal Council |
| **Directors** | Andrew Stanslaus Mashamba, Caroline Ceasar Shija |
| **Head Office** | Makongo, Near Ardhi University, Kinondoni, Dar es Salaam |
| **Phone** | +255 69 241 0353 |
| **Email** | info@zima.co.tz |
| **Website** | zima.co.tz |
| **Share Capital** | TZS 1,000,000 (10,000 ordinary shares @ TZS 100) |

## 1.1 About ZIMA Solutions

ZIMA Solutions Limited is a technology and business innovation company specializing in digital transformation for financial institutions, government agencies, and enterprises in Tanzania and East Africa. We design and implement secure, scalable systems that drive operational efficiency, regulatory compliance, and digital inclusion.

## 1.2 Key Metrics

| | |
|---|---|
| **Enterprise Projects Delivered** | 20+ |
| **Client Organizations Served** | 50+ |
| **Bank of Tanzania Integrations** | 4 (RTGS, TIPS, GePG, NIDA) |
| **System Uptime Guarantee** | 99.9% |

# 2. RELEVANT SERVICES & CAPABILITIES

## 2.2 Full Service Portfolio

- **Bank of Tanzania Integrations** — RTGS, TIPS, GePG, NIDA
- **Core Banking Solutions** — Implementation and integration for banks, SACCOs, MFIs
- **AI & Machine Learning** — Conversational AI, fraud detection, credit scoring, analytics
- **Digital Banking Platforms** — Mobile banking, internet banking, USSD, agency banking
- **Payment Solutions** — TanQR, mobile money, payment gateways, reconciliation
- **API Gateway & Middleware** — Enterprise integration platform
- **Enterprise Software** — ERP, HR, Loan, School, Healthcare management systems
- **Cybersecurity** — Vulnerability assessments, pen testing, compliance audits
- **ICT Infrastructure** — Supply, installation, and maintenance of IT equipment
- **Technology Consultancy** — Digital strategy, feasibility studies, system architecture

# 3. RESPONSE TO THIS TENDER

**Tender:** Competitive Quotation – HYDRO-GEOPHYSICAL SURVEY & BOREHOLE DRILLING IN BAHI & KONDOA DISTRICT COUNCILS

**Institution:** counsenuth

**Tender Type:** Services

## 3.1 Our Understanding of the Requirements

COUNSENUTH is seeking competitive quotations for hydrogeological survey and borehole drilling services in Bahi and Kondoa District Councils, Dodoma Region. The project is part of the Lishe Smart Agriculture project, funded by the Embassy of Ireland, which complements the World Food Programme's Climate Smart Agriculture (CSA) Programme supporting sorghum farmers to improve food security, resilience, and livelihoods.

The scope involves conducting geophysical surveys and drilling 6 complete boreholes at depths of 150m to 350m, with 220mm diameter, well development and capping, 6-inch casing, cleaning, pumping tests, and water quality analysis. The boreholes are intended to provide clean, safe water for irrigation in priority villages identified by the district councils. UPVC installation and gravel packing are also required as part of the completed well construction.

This is a specialized engineering works tender requiring registered drilling companies with valid drillers' company licenses, evidence of similar completed work with at least three client references, and standard Tanzanian business registration documents. The work directly supports agricultural irrigation infrastructure that underpins COUNSENUTH's community nutrition programmes.

## 3.2 Why ZIMA Solutions

Zima is transparent that borehole drilling, hydrogeological survey, and well construction are not our core competencies. These are specialized civil and geological engineering services. However, Zima can add significant value to this project through a strategic partnership with an experienced, licensed drilling firm. Zima's contribution would focus on the data management, mapping, and monitoring technology layer that transforms a traditional borehole drilling project into a smart water infrastructure programme.

Specifically, Zima can provide GIS-based mapping and spatial analysis for identifying optimal drilling sites based on geological data, population distribution, and agricultural water demand. We can develop digital monitoring systems for tracking water extraction rates, quality parameters, and borehole performance over time, which is increasingly important for donor-funded projects that require evidence-based reporting. Our experience building data dashboards and reporting systems would enable COUNSENUTH and the Embassy of Ireland to monitor the irrigation water infrastructure's impact on food security outcomes.

For this tender, Zima would partner with a licensed drilling company that holds the required Drillers Company License and has the heavy equipment, geological expertise, and field crews necessary for the physical drilling operations. Zima would handle the technology, data, and reporting components while the drilling partner manages all survey and construction activities. This partnership model ensures COUNSENUTH gets both world-class drilling services and modern technology-enabled

project management.

### 3.3 Proposed Approach

- Identify and formalize a partnership with a licensed, experienced borehole drilling company that has completed similar projects in Dodoma Region, holds a valid Drillers Company License, and can provide at least three client references.
- Develop a joint bid where the drilling partner leads the hydrogeological survey, site selection, drilling operations, UPVC installation, gravel packing, well development, pumping tests, and water quality analysis.
- Zima contributes GIS-based site mapping, digital project management tools, real-time progress tracking dashboards, and data collection systems for water quality and yield documentation.
- Propose an integrated reporting system that captures drilling logs, geological profiles, water quality test results, and pumping test data in a digital format suitable for COUNSENUTH's donor reporting requirements to the Embassy of Ireland.
- Prepare the joint Bill of Quantities (BoQ) in PDF format with clear cost breakdowns, valid for at least 30 days, accompanied by both companies' registration documents, TIN, business licenses, and the drilling partner's Drillers Company License.

### 3.4 Our Value Proposition

By partnering with an established drilling firm, Zima ensures COUNSENUTH receives proven borehole drilling expertise complemented by modern GIS mapping, digital project tracking, and data management capabilities. This combination delivers not just physical water infrastructure but the digital documentation and monitoring systems that donors increasingly require, turning a construction project into a data-driven water security programme.

### 3.5 Eligibility & Compliance

- ✓ This tender requires a valid Drillers Company License, which Zima does not hold. A partnership with a licensed drilling company is essential.
- ✓ The drilling partner must provide evidence of similar completed work with at least three client references.
- ✓ Both Zima and the drilling partner must provide registration certificates, valid business licenses, and TIN numbers.
- ✓ The quotation must be valid for at least 30 days as specified in the tender requirements.
- ✓ Payment terms must be clearly indicated in the submission.
- ✓ Zima's role should be clearly defined as the technology and data management partner, not the lead drilling contractor, to maintain honesty and credibility in the bid.

## 4. FINANCIAL STANDING & DOCUMENTS

ZIMA Solutions Limited was incorporated in January 2025 under the Companies Act, 2002. As our company recently completed its inaugural financial year (January 2025 – January 2026), our first set of audited financial statements is currently under preparation by our external auditors and **will be available by 1 May 2026**.

In the interim, we are pleased to provide the following documents as evidence of our legal, tax, and operational standing:

- **Certificate of Incorporation** — Issued under the Companies Act, 2002 (Registration No. 181314605)
- **Tax Identification Number (TIN)** — TIN: 181-314-605, issued by Tanzania Revenue Authority
- **Business License** — ICT Services (Local), issued by Kinondoni Municipal Council
- **Memorandum & Articles of Association** — Defining the company's objects, powers, and governance

*These documents are appended to this application (see attached pages).*

## 5. CONTACT INFORMATION

| | |
|---|---|
| **Company** | ZIMA Solutions Limited |
| **Director** | Andrew Stanslaus Mashamba |
| **Phone** | +255 69 241 0353 |
| **Email** | info@zima.co.tz |
| **Address** | Makongo, Near Ardhi University, Kinondoni, Dar es Salaam, Tanzania |
| **Website** | zima.co.tz |
| **TIN** | 181-314-605 |

C.1

TANZANIA

BRELA
BUSINESS REGISTRATIONS AND LICENSING AGENCY

# Certificate of Incorporation of a Company

Section 15

## No: 181314605

I HEREBY CERTIFY THAT

## ZIMA SOLUTIONS LIMITED

is this day incorporated under the Companies Act, 2002 and that the Company is Limited.

**GIVEN** under my hand at Dar es Salaam this **17th** day of **JANUARY TWO THOUSAND AND TWENTY FIVE**.

REGISTRAR OF COMPANIES
TANZANIA

***PRINC ASST. REGISTRAR OF COMPANIES***

CTIN: 1604822

# TANZANIA REVENUE AUTHORITY

## CERTIFICATE OF REGISTRATION
## FOR
## TAXPAYER IDENTIFICATION NUMBER (TIN)

(ISSUED UNDER SECTION 23 OF THE TAX ADMINISTRATION ACT 2015)

## THIS IS TO CERTIFY THAT

**ZIMA SOLUTIONS LIMITED**

HAS BEEN REGISTERED WITH THE TANZANIA REVENUE AUTHORITY
AND ASSIGNED THE TAXPAYER IDENTIFICATION NUMBER

**181-314-605**

WITH EFFECT FROM: **17 JANUARY 2025**

TRA LOCATION: **KINONDONI** TAX OFFICE: **MWENGE**

PHYSICAL LOCATION:

STREET / AREA: **MAKONGO NEARBY ARDHI UNIVERSITY**

ALFRED T. MREGI
**COMMISSIONER FOR DOMESTIC REVENUE**

NOTE: THE REQUIREMENTS UNDER WHICH THIS CERTIFICATE IS ISSUED ARE STATED OVERLEAF

Scanned with CamScanner

THE UNITED REPUBLIC OF TANZANIA

BUSINESS LICENCE

B.L. NO : BL01396912024-2500021919

The Business Licensing Act (Act No. 25 of 1972)

Issuing Office: KINONDONI MUNICIPAL COUNCIL

Tax Identification No: 181-314-605

License Issued To : ZIMA SOLUTIONS LIMITED

for the Business of : ICT SERVICES LOCAL

Business Location

Region : Dar es Salaam

Ward Makongo

Street Mlalakuwa

Principal/Branch : PRINCIPAL

Amount of Fee Paid : 200,000.00

Date Of Issue: 2025-01-20

Expiring Date : 2026-01-19

This is Digital Copy does not require a signature of authority

NOTE - This license must be kept in a conspicuous position at the place of business. Any change in the particulars originally registered must be notified to the license Issuer

**THE COMPANIES ACT NO. 12 OF 2002**

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**COMPANY LIMITED BY SHARES**

**----------**

# MEMORANDUM OF ASSOCIATION

# AND

# ARTICLES OF ASSOCIATION

# OF

# ZIMA SOLUTIONS LIMITED.

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**DRAWN BY:**

**ANDREW STANSLAUS**

**MASHAMBA (SUBSCRIBER)**

**P.O BOX 100025**

**DAR ES SALAAM**

**THE COMPANIES ACT NO. 12 OF 2002**

**COMPANY LIMITED BY SHARES**

**MEMORANDUM OF ASSOCIATION**

**OF**

**ZIMA SOLUTIONS LIMITED.**

1. The name of the Company is **ZIMA SOLUTIONS LIMITED**.

2. The Registered office of the Company will be situated in Tanzania Mainland

3. The objects for which the Company is established are: -

i. Developing, producing, and distributing software applications, systems, platforms, and related tools for commercial, industrial, educational, and other purposes.

ii. Offering consultancy, technical support, and services in areas such as software development, data management, artificial intelligence, cybersecurity, blockchain, and cloud computing.

iii. To Providing web-based and mobile solutions, including web development, e-commerce platforms, and application design.

iv. Designing, installing, maintaining, and managing IT infrastructure, including hardware systems, servers, networking equipment, and databases.

v. Engaging in the business of technology-enabled services, such as IT outsourcing, managed services, and business process automation.

vi. To engage and or otherwise carry on the business in general dealers of computer, hardware and software, to be importers and distributors of all kinds of computer hardware and software, to provide general computer services, to be commercial computer programmers and generally to be computer acquisition consultants, to design and offer computer training services, and to operate schools and training centres, to be suppliers and manufactures representatives of all kinds of computers and telecommunication systems, to be general importers, distributors, installers and services of all kinds of photocopiers, fax and telex machines, general telephone apparels and generally to be telecommunication experts and consultants, to carry on the business of repairs of computers, all kinds of computer systems, electronic items and all kinds of electrical

vii. To enter into (partnership or into) any arrangements for sharing profits, union or interests, Co-operation, joint venture, reciprocal, concession, or otherwise with any

persons, firm or Company carrying on or engaged in or about to carry on or engage in any business or transaction which this Company is authorized to carry on, or engage in any business or transaction capable of being conducted so as directly or indirectly to benefit this Company. And to lend money to, guarantee the constructs of, or otherwise assist, and sell, hold, reissue with or without guarantee, or otherwise deal with the same.

viii. To promote any other company for the purpose of all or any of the property, and undertaking, or any business or operation which may appear likely to assist or benefit this Company, or to enhance the value of the property or business of this Company, and to place or guarantee the placing of, underwrite, subscribe for or otherwise acquire all or any part of the shares of or securities of each company as aforesaid.

ix. To take all necessary and proper steps with the authorities, national, local, municipal, or otherwise, of any place in which the Company may have interest, and to carry on any negotiations or operations for the purpose of directly or indirectly carrying out the objects of the Company or effecting any modification in the constitution of the Company or furthering the interests of its members, and to oppose any steps taken by any other company or persons which may be considered likely, directly or indirectly, to prejudice the interest of the Company or its members.

x. To draw, make, accept, endorse, discount, negotiate, execute and issue, buy, sell and deal in bills of exchange, promissory notes and other negotiable or transferable instruments, amalgamate or enter into partnership or any joint venture or profit – sharing arrangement with, and to co-operation in any way with or assist or subsidize any company, firm or person.

xi. To be agent of foreign company and to establish business enterprises whether small scale, industries and generally deal in all kinds of general merchants and to import, export and all either by merchandise and articles of all description.

AND it is hereby declared that the intention hereof is that the objects hereinabove specified in this clause 3 shall be independent main objects of the Company and shall in no way be limited or restricted by reference to or inference from the terms of any other paragraph or the other clauses hereof.

4. The liability of the members is limited.

5. The share capital of the Company is Tanzania shillings One Million (1,000,000,/=), divided into Ten Thousand (10000) Ordinary shares of Tanzania shillings One Hundred (100/=) each and the Company shall have power to increase its capital and to divide the shares in its capital for the time being into several classes of stock or shares and to attach thereto respectively such preferential, deferred or in accordance with the Articles of Association of the Company

WE, the several persons, whose names and addresses are subscribed below are desirous of being formed into a company in pursuance of this Memorandum of Association and we respectively agree to take the number of shares in the capital of the Company set opposite our respective names

| Names Addresses and Description of Subscribers. | Nationality | Number of shares Taken by each Subscriber | Signature |
|---|---|---|---|
| **ANDREW STANSLAUS MASHAMBA**<br>**P.O BOX 100025**<br>**DAR ES SALAAM** | **TANZANIAN** | **7000** | |
| **CAROLINE CEASAR SHIJA**<br>**P.O BOX 474**<br>**MOSHI** | **TANZANIAN** | **3000** | |

Dated this 17th day of January 2025

**WITNESS** to the above Signatures**: -**
Name: EZRON JASSON

Signature:……

Postal Address: P.O BOX 76500 DAR ES SALAAM

Qualification: NOTARY PUBLIC

**THE COMPANIES ACT NO. 12 OF 2002**

**PRIVATE COMPANY LIMITED BY SHARES**

# ARTICLES OF ASSOCIATION
# OF

# ZIMA SOLUTIONS LIMITED

## INTERPRETATION

1. In these articles:-

"the Act" means the Companies Act;

"the articles" means the articles of the company;

"clear days" in relation to the period of a notice means that period excluding the day when the notice is given or deemed to be given and the day for which it is given or on which it is to take effect;

"the Seal" means official seal of the company;

"Secretary" shall mean any person appointed to perform the duties of Secretary of the Company.

Expressions referring to writing shall, unless the contrary intention appears, be construed as including references to printing, lithography, photograph, and other modes of representing or reproducing words in a visible form.

Unless the context otherwise requires, words or expressions contained in these articles shall bear the same meaning as in the Act or any statutory modification thereof in force at the date at which these articles become binding on the company.

## SHARE CAPITAL AND VARIATIONS OF RIGHTS

2. Subject to the provisions of the Act, and without prejudice to any rights attached to any existing shares, any share may be issued with such rights or restrictions, whether in regard to dividend, voting, return of capital or otherwise as the company may by ordinary resolution determine.

3. Subject to the provisions of section 61 of the Act, any shares may, with the sanction of an ordinary resolution, be issued on the terms that they are, or at the option of the company are liable, to be redeemed on such terms and in such manner as the company before the issue of the shares may by special resolution determine.

4. If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may, whether or not the company is being wound up, be varied with the consent in writing of the holders of three-fourths of the issued shares of that class, or with the sanction of a special resolution passed at the general meeting of the holders of the shares of that class. To every such separate general meeting the provisions of these Articles relating to general meetings shall apply, but so that the necessary quorum shall be two persons at least holding or representing by proxy one-third of the issued shares of the class and that any holder of shares of the class present in person or by proxy may demand a poll.

5. The rights conferred upon the holders of the shares of any class shall not, unless otherwise expressly provided by the terms of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking *pari passu* therewith.

6. The company may exercise the powers of paying commissions conferred by section 56 of the Act. Subject to the provisions of the Act, such commission may be satisfied by the payment of cash or other allotment of fully or partly paid shares or partly in one way and partly in the other.

7. Except as required by law, no person shall be recognized by the company as holding any share upon any trust, and the company shall not be bound by or be compelled in any way to recognize ( even when having notice thereof) any equitable, contingent, future or partial interest in any share or interest in any fractional part of a share or (except as otherwise provided by the Articles or by law) any other rights or interests in respect of any shares except an absolute right to the entirety thereof in the registered holder.

## SHARE CERTIFICATES

8. Every member, upon becoming the holder of any shares, shall be entitled without payment to receive within two months after allotment or lodgement of transfer (or within such other period as the conditions of issue shall provide) one certificate for all the shares of each class held by him (and, upon transferring a part of his holding of shares of any class, to a certificate for the balance of such holding) or several certificates each for one or more of his shares upon payment for every certificate after the first such reasonable sum as the directors may determine. Every certificate shall be sealed with the seal and shall specify the number, class and distinguishing numbers (if any) of the shares to which it relates and the amount or respective amounts paid thereon. In respect of a share or shares held jointly by several persons, the company shall not be bound to issue more than one certificate, and delivery of a certificate for a share to one joint holder shall be sufficient delivery to all joint holders.

9. If a share certificate is defaced, worn out, lost or destroyed, it may be renewed on such terms (if any) as to evidence and indemnity and payment of expenses reasonably incurred by the company in investigating evidence as the directors may determine but otherwise free of charge, and (in the case of a defacement or wearing out) on delivery up of the old certificate.

## LIEN

10. The company shall have a first and paramount lien on every share (not being a fully paid share) for all moneys (whether presently payable or not) called or payable at a fixed time in respect of that share; but the directors may at any time declare any share to be wholly or in part exempt from the provisions of this Article. The company's lien, if any, on a share shall extend to any amounts payable in respect of it.

11. The company may sell, in such a manner as the directors determine, any shares on which the company has a lien if a sum in respect of which the lien exists is presently payable and is not paid within fourteen clear days after notice in writing has been given to the holder of the share, or the person entitled thereto by reason of the death or bankruptcy of the holder, demanding payment and stating that if the notice is not complied with the shares may be sold.

12. To give effect to any such sale the directors may authorize some person to transfer the shares sold to, or in accordance with the directions of, the purchaser thereof. The purchase shall be registered as the holder of the shares comprised in any such transfer, and he shall not be bound to see the application of the purchase money,

nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.

13. The net proceeds of the sale shall be received by the company and applied in payment of such part of the amount in respect of which the lien exists as is presently payable, and the residue, if any, shall (upon surrender to the company for cancellation of the certificate for shares sold and subject to a like lien for sums not presently payable as existed upon the shares before the sale) be paid to the person entitled to the shares, at the date of sale.

## CALLS ON SHARES

14. Subject to the terms of allotment, the directors may make calls upon the members in respect of any moneys unpaid on their shares (whether in respect of nominal value or premium) and not by the conditions of allotment thereof made payable at fixed times, provided that no call shall exceed one-fourth of the nominal value of the share or be payable at less than one month from the date fixed for the payment of the last preceding call, and each member shall (subject to receiving a least fourteen clear days' notice specifying when and where payment is to be made) pay to the company as required by the notice the amount called on his shares. A call may be required to be paid by instalments. A call may, before receipt by the company of any sum due thereunder, be revoked in whole or in part and payment of a call may be postponed in whole or part. A person upon whom a call is made shall remain liable for calls made upon him notwithstanding the subsequent transfer of the shares in respect of which the call was made.

15. A call shall be deemed to have been made at the time when the resolution of the directors authorizing the call was passed.

16. The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.

17. If a call remains unpaid after it has become due and payable, the person from whom the sum is due shall pay interest on the sum unpaid from the day it became due and payable to the time of actual payment at the rate fixed by the term of allotment of the share or, if no rate is fixed, at a rate not exceeding five per cent per annum as the directors may determine, but the directors may waive payment of such interest wholly or in part.

18. An amount payable in respect of a share on allotment or at any fixed date, whether in respect of nominal value or premium or as an instalment of a call, shall be deemed to be a call, and if it is into paid the provisions of the Articles shall apply as if that amount had become due and payable by virtue of a call.

19. Subject to the terms of allotment, the directors may, on the issue of shares, differentiate between the holders as to the amount of calls to be paid and the times of payment.

20. The directors may, if they think fit, receive from any member willing to advance the same, all or any part of the moneys un-called and unpaid upon any shares held by him, and upon any or all of the moneys so advanced may (until the same would, but for such advance, become [payable) pay interest at such rate not exceeding (unless the company in general meeting shall otherwise direct) six per cent per annum, as may be agreed upon between the directors and members paying such sum in advance.

## TRANSFER OF SHARES

21. The instrument of transfer of any share shall be in any usual form or any other form which the directors may approve and shall be executed by or on behalf of the transferor and, unless the share is fully paid up, by or on behalf of the transferee, and the transferor shall be deemed to remain a holder of the share until the name of the transferee is entered in the register of members in respect thereof.

22. The directors may refuse to register the transfer of a share which is not fully paid to a person of whom they do not approve and they may refuse to register the transfer of a share on which the company has a lien. They may also refuse to register a transfer unless:-

    (a) it is lodged at the office or such other place as the directors may appoint, and is accompanied by the certificate of shares to which it relates, and such other evidence as the directors may reasonably require to show the right of the transferor to make the transfer; and

    (b) it is in respect of only one class of shares; and

    (c) it is in favour of not more than four transferees.

23. If the directors refuse to register a transfer they shall within sixty days after the date on which the transfer was lodged with the company send to the transferee notice of the refusal.

24. The registration of transfers of shares or any transfers of any class of shares may be suspended at such times and for such periods (not exceeding thirty days in a year) as the directors may determine.

25. No fee shall be charged for the registration of any instrument of transfer or other document relating or affecting title to any share.

## TRANSMISSION OF SHARES

26. In case of the death of a member, the survivor or survivors where the deceased was a joint holder, and the personal representatives of the deceased where he was a sole holder or the only survivor of joint holders, shall be the only persons recognized by the company as having any title to his interest in the shares; but nothing herein contained shall release the estate of a deceased member form any liability in respect of any share which had been jointly held by him.

27. A person becoming entitled to a share in consequence of the death or bankruptcy of a member may, upon such evidence being produced as may properly be required by the directors and subject as hereinafter provided, either elect by notice to the company to be registered as holder of the share, or elect to have some person nominated by him registered as the transferee in which case he shall execute the appropriate instrument of transfer. All the articles relating to the right of transfer of shares shall apply to any such notice or transfer as if it were an instrument of transfer executed by the member and the death or bankruptcy of the member had not occurred.

28. A person becoming entitled to a share by reason of the death or bankruptcy of the holder shall have the rights to which he would be entitled if he were the registered holder of the share, except that he shall not, before being registered as the holder of the share, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the company.

## FORFEITURE OF SHARES

29. If a call remains unpaid after it has become due and payable, the directors may give to the person from whom it is due not less than fourteen clear days' notice requiring payment of the amount unpaid, together with any interest which may have accrued. The notice shall name the place where payment is to be made and shall state that if the notice is not complied with, the shares in respect of which the call was made will be liable to be forfeited.

30. If the notice is not complied with, any share in respect of which it was given may, before the payment required by the notice has been made, be forfeited by a resolution of the directors to that effect and the forfeiture shall include all dividends or other moneys payable in respect of the forfeited shares and not paid before the forfeiture.

31. Subject to the provisions of the Act, a forfeited share may be resold, re-allotted or otherwise disposed of on such terms and in such manners as the directors determine either to the person who was before the forfeiture the holder or to any other person, and at any time before a sale, re-allotment or other disposition the forfeiture may be cancelled on such terms as the directors think fit. Where for the

purposes of its disposal a forfeited share is transferred to any person, the directors may authorize some person to execute an instrument of transfer of the share I question.

32. A person any of whose shares have been forfeited shall cease to be a member in respect of the forfeited shares and shall surrender to the company for cancellation the certificate for the shares forfeited, but shall remain liable to the company for all moneys which, at the date of forfeiture, were payable by him to the company in respect of the shares, but his liability shall cease if and when the company shall have received payment in full of all such moneys in respect of the shares, but the directors may waive payment wholly or in part or enforce payment without any allowance for the value of the shares at the time of forfeiture of shares for any consideration received on their disposal.

33. A statutory declaration by a director or the secretary that a share has been forfeited on a date stated in the declaration shall be conclusive evidence of the facts stated therein as against all persons claiming to be entitled to the share, and the declaration shall (subject to the execution of an instrument of transfer if necessary) constitute good title to the share, and the person to whom the share is disposed of shall not be bound to see the application of the consideration, if any, nor shall his title to the share be affected by any irregularity or invalidity of the proceedings in reference to the forfeiture or disposal of the share.

## ALTERATION OF CAPITAL

34. The company may by ordinary resolution:-

(a) increase its share capital by new shares of such amount, as the resolution prescribes;

(b) consolidate and divide all or any of its share capital into shares of larger amount than its existing shares;

(c) subject to the provisions of section 65 (1) (d) sub-divide its existing shares, or any of them, into shares of smaller amount than is fixed by the memorandum of association;

(d) Cancel shares which, at the date of the passing of the resolution, have not been taken or agreed to be taken by any person and diminish the amount of its share capital by the amount of shares so cancelled.

35. Whenever as a result of a consolidation of shares any members would become entitled to fractions of a share, the directors may, on behalf of those members, sell the shares representing the fractions for the best price reasonably obtainable to any person (including subject to the provisions of the Act, the company) and distribute the net proceeds of sale in due proportion among those members, and

the directors may authorize some person to execute an instrument of transfer of the shares to or in accordance with the directions of the purchaser. The transferee shall not be bound to see the application of the purchase money nor shall his title be affected by any irregularity in or invalidity of the proceedings in reference to the sale.

36. Subject to the provisions of the Act, the company may by special resolution reduce its share capital, any capital redemption reserve fund or any share premium account in any way.

## MEMBERS

37. The number of members with which the company proposes to be registered is at least two but the directors may from time to time register an increase of members.

38. The subscribers to the memorandum of association and such other persons as the directors shall admit to membership shall be members of the company.

## GENERAL MEETINGS

39. The Company shall in each year hold a general meeting as its annual general meeting in addition to any other meetings in that year, and shall specify the meeting as such in the notice calling it; and not more than fifteen months shall elapse between the date of one annual general meeting of the company and that of the next.

    Provided that so long as the company holds its first annual general meeting within eighteen months of its incorporation, it need not hold it in the year of its incorporation or in the following year. The annual general meeting shall be held at such time and place, as the directors shall appoint.

40. All general meetings other than annual general meetings shall be called extraordinary general meetings.

41. The directors may, whenever they think fit, convene an extraordinary general meeting, and extraordinary general meetings shall also be convened on such requisition, or in default, may be convened by such requisitionists, as provided by section 134 of the Act. If at any time there are not within the Tanzania sufficient directors capable of acting to form a quorum, any director or any two members of the company may convene an extraordinary general meeting in the same manner as nearly as possible as that in which meeting may be convened by the directors.

## NOTICE OF GENERAL MEETINGS

42. Every general meeting shall be called by twenty-one clear days' notice in writing at the least. The notice shall specify the place, the day and hour of meeting and, in case of special business, the general nature of that business:

Provided that a meeting of the company shall, notwithstanding that it is called by shorter notice than that specified in this article be deemed to have been duly called if it so agreed:-

(a) in the case of a meeting called as the annual general meeting, by all the members entitled to attend and vote thereat; and

(b) in the case of any other meeting, by a majority in number of the members having a right to attend and vote at the meeting, being a majority together representation not less than ninety – five percent of the total voting rights at that meeting of all the members.

43. Subject to the provisions of the articles, the notice shall be given to all the members, to all persons entitled to a share in consequence of the death or bankruptcy of a member and to the directors and auditors. The accidental omission to give notice of a meeting to, or the non-receipt to notice of a meeting by, any person entitled to receive notice shall not invalidate the proceedings at that meeting.

## PROCEEDINGS AT GENERAL MEETINGS

44. All business shall be deemed special that is transacted at an extraordinary general meeting, and also all that is transacted at an annual general meeting, with the exception of declaring a dividend, the consideration of the accounts, balance sheets, and the reports of the directors and auditors, the election in the place of those retiring and the appointment of, and the fixing of the remuneration of the auditors.

45. No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business; two persons, entitled to vote on the business to be transacted, each being a member or a proxy for a member or a duly authorized representative of a corporation, shall be a quorum.

46. If within half an hour from the time appointed for the meeting quorum is not present, or if during the course of a meeting a quorum is not present, the meeting shall stand adjourned to the same day in the next week, at the same time and

place, or to such other day and at such other time and place as the directors may determine.

47. The Chairman, if any, of the board of directors or in his absence some other director nominated by the directors shall preside as chairman of the general meeting, but if neither the chairman nor such other director (if any) be present within fifteen minutes after the time appointed for the holding of the meeting and willing to act, the directors present hall elect one of their member to be chairman of the meeting and, if there is only one director and willing to act, he shall be chairman.

48. If at any meeting no director is willing to act as chairman or if no director is present within fifteen minutes after the time appointed for holding the meeting, the members present shall choose one of them to be a chairman of themeeting.

49. The Chairman may, with the consent of any meeting at which a quorum is present (and shall if so directed by the meeting), adjourn the meeting from time to time and from place to place, but no business shall be transacted at any adjourned meeting other than the business which might properly have been transacted at the meeting had the adjournment not taken place. When a meeting is adjourned for fourteen days or more, at least seven clear days' notice of the adjourned meeting shall be given specifying the time and place of the meeting and the general nature of the business to be transacted. Save as aforesaid it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

50. At any general meeting a resolution put to the vote of the meeting shall be decided on a show of hands unless a poll is (before or on the declaration of the result of the show of hands demand:-

(a) by the chairman; or

(b) by at least (three) members present in person or by proxy; or

(c) by any member or members present in person or by proxy and representing not less than one – tenth of the total voting rights of all the members having the right to vote at the meeting.

Unless a poll be so demanded a declaration by the chairman that a resolution has on a show of hands been carried or carried unanimously, or by a particular majority, or lost and an entry to the effect in the book containing the minutes of proceedings of the company shall be conclusive evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against such resolution.

***The demand for a poll may, before the poll is taken, be withdrawn***

51. Except as provided in article 18, if a poll is duly demand it shall be taken in such manner as the chairman directs, and the result of the poll shall be deemed to be the resolution of the meeting at which the poll was demand.

52. In the case of an equality of votes, whether on a shoe of hands or on a poll, the chairman of the meeting shall be entitled to a second or casting vote.

53. A poll demanded on the election of a chairman, or on a question of adjournment, shall be taken immediately. A poll demanded on any other question shall be taken either immediately or at such time as the chairman of the meeting directs, and any business other than upon which a poll has been demanded may be preceded with pending the taking of the poll.

54. A resolution in writing executed by or on behalf of each member who would have been entitled to vote upon it if it had been proposed at a general meeting at which he was present shall have effect as if it had been passed at a general meeting duly convened and held, and consist of several instruments in the like form each executed by or on behalf of one or more member.

**VOTE OF MEMBERS**

55. Every member shall have one vote.

56. A member in respect of whose estate a manager has been appointed under section 26 of the Mental Diseases Ordinance, may vote, whether on a show of hands or on a poll, by his said manager, and any such manager may, on a poll, vote by proxy.

57. No member shall be entitled to vote at any general meeting unless all moneys presently payable by him to the company have been paid.

58. On a poll votes may be given either personally or byproxy.

59. The instrument appointing a proxy shall be in writing under the hand of the appointer or of his attorney duly authorized in writing, or, if the appointer is a corporation, either under sea) or under the hand of an officer or attorney duly authorized. A proxy need not be a member of the company.

60. The instrument appointing a proxy and the power of attorney or other authority, if any, under which it is signed or a notarial certified copy of that power or authority shall be deposited at the registered office of the company or at such other place within the Territory as is specified for that purpose in the notice convening the meeting, not less than 48 hours before the time for holding the meeting of adjourned meeting at which the per son named in the instrument proposes to vote,

or, in the case of a poll, not less than 24 hours before the time appointed for the taking of the poll, and in default the instrument of proxy shall not be treated as valid.

61. An instrument appointing a proxy shall be in the following form or a form as near hereto as circumstances admit:-

**"ZIMA SOLUTIONS LIMITED."**

I/We …….. of..... , being a member/ members of the above – named company, hereby appoint …….
, of
or failing him …… of....., as my/our proxy to vote for
me/us on my/or behalf at the {annual or extraordinary, as the case maybe} general meeting of the
company to be held on the …….day of ……..20… ...., and at any adjournment thereof.

Signed this …….. day of, …….20....."

62. Where it is desired to afford members an opportunity of voting for or against a resolution the instrument appointing a proxy shall be in the following form or a form as near thereto as circumstances admit:-

**"ZIMA SOLUTIONS LIMITED."**

I/We ……of ……. Being a member/members of the above named company, hereby appoint of ……. of..... or failing him ……. of …... as my/our proxy to vote for me/us on my/our behalf at the {annual or extraordinary, as the case may be} general meeting of the company to be held on the ……day of……20… , and at any adjournment thereof.

Signed this ……..day of……..…20…….

This form is to be used* in favour of/against the resolution. Unless otherwise instructed, the proxy will vote as he thinks fit.

*Strike out whichever is not desire"

63. The instrument appointing a proxy shall be deemed to confer authority to demand or join in demanding a poll.

64. A vote given in accordance with the terms of an instrument of proxy, or poll demanded by proxy, or by the duty authorized representative of a corporation shall be valid notwithstanding the previous determination of the authority of the

person voting or demanding a poll unless notice of the determination was received by the company at its registered office (or at such other place at which the instrument of proxy was duly deposited) before the commencement of the meeting or adjourned meeting at which the proxy is used.

**CORPORATIONS ACTING BY REPRESENTATION AT MEETINGS**

65. Any corporation which is a member of the company may be resolution of its directors or other governing body authorize such person as it thinks fit to act as its representative at any meeting of the company, and the person so authorized shall be entitled to exercise the same powers on behalf of the corporation which he represents as that corporation could exercise if it were an individual member of the company.

**DIRECTORS**

66. The Number of the directors and the names of the first directors shall be determined in writing by the subscribers of the memorandum of association or a majority of them and until such determination the signatories to the Memorandum of Association shall be the first directors. Unless otherwise determined by ordinary resolution, the number of directors shall not be subject to any maximum but shall be not less than two. The names of the first Directors;

1. ANDREW STANSLAUS MASHAMBA
2. CAROLINE CEASAR SHIJA

67. The remuneration of the directors shall from time to time be determined by the Company in general meeting. Such remuneration shall be deemed to accrue from day to day. The directors shall also be paid all travelling, hotel and other expenses properly incurred by them in attending and returning from meetings of the directors or any committee of the directors or general meetings of the company or in connection with the business of the company.

**BORROWING POWERS**

68. The director may exercise all the powers of the company to borrow money, and to mortgage or charge its undertaking and property, or any part thereof, and to issue debentures, debenture stock and other securities, whether outright or as security for any debt, liability or obligation of the company or any third party.

## POWERS AND DUTIES OF DIRECTORS

69. Subject to the provisions of the Act, the memorandum and the articles and to any directors given by special resolution, the directors, who may exercise all the powers of the company, shall manage the business of the company. No alteration of the memorandum or articles and no such directions shall invalidate any prior act of the directors, which would otherwise have been valid. The powers given by this article shall not be limited by any special power given to the directors by the articles and a meeting of directors at which a quorum is present may exercise all powers exercisable by the directors.

70. The directors may by power of attorney appoint any person to be the attorney or agent of the company for such purposes and on such conditions as they determine, including authority for the attorney or agent to delegate all or any of his powers.

71. All cheques, promissory notes, drafts, bills of exchange and other negotiable instruments, and all receipts for moneys paid to the company, shall be signed, drawn, accepted, endorsed, or otherwise executed, as they case may be, in such manner as the directors shall from time to time by resolution determine,

72. The directors shall cause minutes to be made in books provided for the purpose:-
    (a) of all appointments of officers made by the directors;
    (b) of the names of the directors present at each meeting of the directors and of any committees of the directors;
    (c) of all resolutions and proceedings at all meetings of the company, and of the directors, and of committees of directors.

## DISQUALIFICATION OF DIRECTORS

73. The office of director shall be vacated if the directors:-

    (a) Without the consent of the company in general meeting holds any other office of profit under the company; or
    (b) Becomes bankrupt or makes any arrangement or composition with his creditors generally; or
    (c) Cease to be a director by virtue of any provision of the Act or becomes prohibited by law from being a director; or
    (d) Becomes of unsound mind; or
    (e) Resigns his office by notice in writing to the company; or
    (f) Is directly or indirectly interested in any contract with the company and fails to declare the nature of his interest in manner required by the Act.

    A director shall not vote in respect of any contract in which he is interested or any matter arising thereat, and if he does so vote shall not be counted.

74. The company may be ordinary resolution appoint a person who is willing to act as director to fill a vacancy or be an additional director.

75. The directors may appoint a person who is to act to be a director, either to fill a vacancy or as an additional director, but so that the total number of directors shall not at any time exceed the number fixed by or in accordance with these articles. Any director so appointed shall hold office only until the next following annual general meeting, and shall then be eligible for re – election.

76. The company may by ordinary resolution, of which special notice had been given in accordance with section 144 of the Act, remove any director before the expiration of his period of office notwithstanding anything in the article or any agreement between the company and such director. Such removal shall be without prejudice to any claim such director may have for damages for breach of any contract of service between him and the company.

77. The company may be ordinary resolution appoint another person in place of a director removed from office under the immediately preceding article. Without prejudice to the powers of the directors under article 40 the company in general meeting may appoint any person to be a director either to fill a vacancy or as an additional director.

78. Subject to the provisions of the articles, the directors may regulate their meetings as they think fit. Questions arising at a meeting shall be decided by a majority of votes. In case of an equality of votes, the chairman shall have a second or casting vote. A director may, and the secretary at the request of a director shall, call a meeting of the directors. It shall not be necessary to give notice of a meeting of directors to any directors who are absent from Tanzania.

79. The quorum necessary for the transaction of the business of the directions may be fixed by the directors and unless so fixed shall be two.

80. The continuing directors may act notwithstanding any vacancy but, if and so long as their number is reduced below the number fixed by or pursuant to the articles of the act for the purpose of increasing the number of directors to that number, or summoning a general meeting of the company, but for no other purpose.

81. The directors may appoint one of their numbers to be the chairman of the board of directors and determine the period of which he is to hold office. Unless he is unwilling to do so, the director so appointed shall preside at every meeting of directors at which he is present. But if no such chairman is appointed, or if he is unwilling to preside, or if at any meeting the chairman is not present within five minutes after the time appointed for holding the same, the directors present may choose one of their number to be chairman of the meeting.

82. The directors may delegate any of their powers to any committee consisting of one or more directors; any committees so formed shall in the exercise of the powers so to any such regulations, the proceedings of a committee with two or more members shall be governed by the articles regulating the proceedings of directors so far as they are capable of applying.

83. All act done by a meeting of the directors or of a committee of directors or by a person acting as a director shall, notwithstanding that it be afterwards discovered that there was some defect in the appointment of any such director, or that any of them were disqualified from holding office, or hand vacated office, or were not entitled to vote, be as valid as if every such person had been duly appointed and was qualified and had continued to be a director and was entitled to vote.

84. A resolution in writing signed by all the directors entitled to receive notice of a meeting of the directors, or of a committee of directors, shall be as valid and effectual as if it had been passed at a meeting of the directors or {as the case may be} a committee of directors duly convened and held, and may consist of several documents in the like form each signed by one or more directors.

**SECRETARY**

85. The Secretary shall be appointed by the directors for such term, at such remuneration and upon such conditions as they may think fit; and any secretary so appointed may be removed by them.

86. A provisions of the Act or these articles requiring or authorizing a thing to be done by or to a director and the secretary shall not be satisfied by its being done by or to the same person acting both as director and as, or in place of, the secretary.

**THE SEAL**

87. The seal shall only be used by the authority of the directors or of a committee of the directors authorized by the directors. The directors may determine who shall sign any instrument to which the seal is affixed and unless otherwise so determined it shall be signed by a director and by the secretary or by a second director.

88. The directors shall cause proper books of account to be kept with respect to:-

(a) all sums of money received and expended by the company and the matters in respect to which the receipt and expenditure takes place;
(b) all sales and purchase of goods by the company; and

(c) the assets and liabilities of the company.

Property books shall not be deemed to be kept if there are not kept such books of account as are necessary to give a true and air view of the state of the company's affairs and to explain its transactions.

89. The books of account shall be kept at the registered officer of the company, or subject to section 151 (4) of the Act, at such other place or places as the directors think fit, and shall always be open to the inspection of the directors.

90. No number shall (as such) have right of inspecting any accounting records or other book or document of the company except as conferred by statue or authorized by the directories or by ordinary resolution of the company.

91. The directors shall from time to time in accordance with sections 153,155 and 150 of the Act, cause to be prepared and to be laid before the company in general meeting, such profit and loss accounts, balance sheets, group accounts (if any) and reports as are referred to in those sections.

92. In accordance with section 164 of the Act, the copy of the company's annual accounts to be laid before the company in general meeting together with a copy of the directors' report and the auditors shall not less than twenty – one days before the date of the meeting be sent to every member of, and every holder of debentures of, the company. Provided that this regulation shall not require a copy of those documents to be sent to any person of whose address the company is not aware or to more than one of the joint holders of any debentures.

**AUDIT**

93. Auditors shall be appointed and their duties regulated in accordance with sections 170 to 179 of the Act.

94. Any notice to be given to or by any person pursuant to the articles shall be in writing except that a notice calling a meeting of directors need not be in writing. The company may give any notice to a member either personally or by sending it by post in a prepared envelope addressed to the member at his registered address, or by leaving it at that address. Where a notice is sent by post, service of the notice shall be deemed to be effected by properly addressing, prepaying, and posting a letter containing the notice, and to have been effected at the expiration of seventy – two hours after the letter containing the same was posted. A member whose registered address is not within the Tanzania and who gives to the company an address within the Tanzania at which notices may be given him shall be entitled to have notices given to him at that address, but otherwise no such member shall be entitled to receive any notice from the company.

## ALTERATIONS OR ADDITION

95. Subject to the provisions of the Act and the Memorandum of Association, the Company, may by special resolution, make alterations or additions to the Articles of Association and any such alterations or additions made shall be as valid and effectual as if originally contained in these Articles and be subject in like manner to alteration by special resolution.

## INDEMNITY

96. Subject to the provisions of the Act, but without prejudice to any indemnity to which a director may otherwise be entitled, every director or other officer of the company shall be indemnified out of the assets of the company against any liability incurred by him in defending any proceedings, whether civil or criminal, in which judgment is given in his favour or in which he is acquitted or in connection with any application under section 481 of the Act in which relief is granted to him by the court from liability for negligence, default, breach of duty or breach of trust in relation to the affairs of the company.

| Names Addresses and Description of Subscribers. | Nationality | Number of shares Taken by each Subscriber | Signature |
|---|---|---|---|
| **ANDREW STANSLAUS MASHAMBA**<br>**P.O BOX 100025**<br>**DAR ES SALAAM** | **TANZANIAN** | **7000** | |
| **CAROLINE CEASAR SHIJA**<br>**P.O BOX 474**<br>**MOSHI** | **TANZANIAN** | **3000** | |

Dated this 17th day of January 2025

**WITNESS** to the above Signatures**: -**
Name: EZRON JASSON

Signature:……

Postal Address: P.O BOX 76500 DAR ES SALAAM

Qualification: NOTARY PUBLIC